

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

SUPPLEMENTAL COMPLAINANT’S MOTION FOR PROTECTIVE ORDER

Complainant FormuKleen, Inc. (“FormuKleen”), by and through its Representative, moves for the entry of a Protective Order governing discovery in this proceeding.

Introduction and Relief Requested

Discovery document production will require exchange of materials that include confidential business information, non-party commercial data, bank and payment records, negotiated pricing and duty/fee details, internal communications, and personally identifying information. To protect the confidentiality of sensitive commercial and third-party information and to streamline discovery and production, Complainant requests entry of the attached Protective Order.

Legal Basis

The Commission may, for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense, including measures such as forbidding disclosure, limiting scope, prescribing alternate methods, and, critically here, “requiring that

a trade secret or other confidential ... commercial information not be disclosed or be disclosed only in a specified way.” 46 C.F.R. § 502.141(j)(1)(i)–(viii). See also 46 C.F.R. § 502.5.

Good Cause

Good cause exists because discovery encompasses, among other things:

1. **Confidential commercial and financial information** (rates, storage/duty advances, A/R ledgers, vendor invoices, bank confirmations, payment images).
2. **Non-party proprietary data and communications** (carriers, terminals, drayage vendors, brokers).
3. **Operational systems content** (WMS/TMS/CRM notes, internal policies/SOPs, portal screenshots and logs).
4. **Personal data** (names, emails, phone numbers, account identifiers).
5. **Supplier/manufacturer identities and sourcing data.** Shipping documents (bills of lading, commercial invoices, POs) often reveal supplier/manufacturer names, product descriptions/HTS codes, volumes, Incoterms, and plant locations. Public disclosure enables competitors or counterparties to circumvent and poach suppliers and undercut negotiated terms. Protective relief under 46 C.F.R. § 502.141(j)(1)(vii) is essential to prevent that misuse.

Duty to Confer and Status

Conferral and status. Complainant’s representative circulated a joint protective order to Respondent on Thursday, September 25, 2025 at 2:15 p.m. CST. On September 29 at 3:16 pm CST, Respondent’s counsel stated "I have changes which I am having my client review, after which I will

send it to you,” yet as of September 30, 2025 at 12:00 p.m. CST no redline or concrete edits have been provided. The Court’s deadline is today. Complainant is not obligated to sit idle, forfeit other work, await indefinite client review, and then scramble to remake a filing, nor will Complainant be forced into a late submission by Respondent’s purposeful delay. Respondent’s stance has obstructed entry of routine protections and delayed the start of rolling production. Complainant therefore files the proposed form now and remains willing to consider tweaks if the Court so directs, but asks that discovery proceed under the attached order without further delay.

Requested Relief

Complainant respectfully request that the Commission:

1. Grant this Motion;
2. Enter the attached Protective Order; and
3. Direct the Parties to proceed with discovery consistent with that Order.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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Signature: 

Date: 09/ 30 /2025

CERTIFICATE OF SERVICE

I certify that on September 30th, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

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